



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

OCT 31 2000

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 12560

EXPIRATION DATE: January 15, 2001

1. GRANTEE: Phillips Alaska, Inc.
Anchorage, AK
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the transportation in commerce of certain DOT Specification UN31A intermediate bulk containers containing the material described in paragraph 6 below, which exceed quantity limitations when shipped by air. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Table, Column (9B) in that the quantity limitation for cargo aircraft only is exceeded.
5. BASIS: This emergency exemption is based on the application of Phillips Alaska, Inc. dated October 19, 2000 and additional information dated October 30, 2000, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Flammable liquids, n.o.s. (Xylene, trimethylbenzene)	3	UN1993	III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT Specification UN31A intermediate bulk container (IBC) with a capacity of 350 U.S. gallons.

b. OPERATIONAL CONTROLS -

(1) Transportation by cargo aircraft only is authorized from the Phillips Petroleum Company base of operations in Deadhorse, AK to the Alpine oilfield.

(2) Only the following air carriers are authorized under the terms of this exemption:

Northern Air Cargo, Anchorage, AK

Air Cargo Express, Fairbanks, AK

Lynden Air Cargo, Anchorage, AK

8. SPECIAL PROVISIONS:

a. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

b. MARKING - Each IBC must be marked "DOT-E 12560" as specified in §§ 172.302(b) and 172.302(c).

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo aircraft only.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption. The shipper must furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

OCT 31 2000

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590.
Attention: DHM-31.

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The original of this exemption is on file at the above office.
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PO: CHHOCHMAN/AM